FORESTS

AN ORDINANCE TO CONSOLIDATE AND AMEND THE LAW RELATING TO FORESTS AND THE FELLING AND TRANSPORT OF TIMBER.

Ordinance Nos, [**2nd January , 1908**]
16 of 1907

CHAPTER I

11 of 1912

PRELIMINARY

24 of 1918

Short title.**1**. This Ordinance may be cited as the Forest Ordinance.

23 of 1931

Questions of title.

16 of 1935

2. If in any prosecution or proceeding under this Ordinance any question shall arise as to the title to the land in respect of which any such prosecution or proceeding shall be taken, the court or officer having jurisdiction to entertain and adjudicate upon any such prosecution or proceeding shall, for the purposes of the said prosecution or proceeding, have jurisdiction to try and determine any such question of title:

30 of 1945

8 of 1947

Act Nos,

34 of 1951

Provided that the judgment or decision of such court or officer on any such question shall not be received as evidence of title or pleaded in bar in any civil suit or proceeding or in any proceeding under the Land Settlement Ordinance, in which the title to the land in question may be put in issue.

49 of 1954

And in the event of judgment being entered in any suit or proceeding instituted against the Crown decreeing the title to any land reserved under this Ordinance or under any enactment repealed by Ordinance No. 16 of 1907 to be vested in the person instituting such suit or proceeding, such land shall cease to be reserved from the date of such decree.

CHAPTER II

OF RESERVED FORESTS

Order declaring forest reserved.

3. When the following events have occurred, namely:-

(a) when lands have been resumed by the Crown under the provisions of the Lands Resumption Ordinance ;

(b) when lands have been declared to be the property of the Crown by an order passed under ” The Waste Lands Ordinances, 1897 to 1903 “* [* Repealed by Ordinance No. 20 of 1931.] or made under the Land Settlement Ordinance;

(c) when any land has been acquired by the Crown for public purposes under the provisions of the Land Acquisition Ordinance,! or the Land

[2, 49 of 1954] Acquisition Act,

the Minister[1] may, by Order[1] to be published in the Gazette, declare all or any of such lands or any part or parts thereof to be a reserved forest, and such Order[1] shall specify the limits of the forest which it is intended to reserve, and declare the same to be reserved from a date fixed by such Order[1]. From the date so fixed such forest shall be deemed to be a reserved forest.

Section 16 of the Interpretation Ordinance shall not apply to the interpretation of this section. [! Repealed by Act No. 9 of 1950.]

Publication of Order in Sinhalese and Tamil.

4. (1) The Government Agent of the administrative district in which the forest so reserved is situate shall, before the date fixed by such Order[1], cause a translation thereof in the language of the district to be published in the manner following, that is to say:-

By a notification in the Sinhala and Tamil languages, which shall be published in every divisional Assistant Government Agent's division of the district in which any portion of the land comprised in the aforesaid Order[1] is situate, and in every town and village in the immediate neighbourhood of such land. Every such notification shall-

(a) specify as nearly as possible the situation and limits of the proposed forest;

(b) explain the consequences which will ensue on the reservation of such forest.

Power of Minister to declare forest no longer reserved.

(2) The Minister[1] may, by Order[1] published in the Gazette, direct that from a date fixed by such Order[1] any reserved forest or any portion thereof shall cease to be reserved. From the date so fixed such forest or portion of forest shall cease to be reserved.

Power of forest officer to stop ways and watercourses in reserved forest.

5. A forest officer duly empowered in that behalf may, from time to time, stop any public or private way or watercourse in a reserved forest:

Provided that for the way or watercourse so stopped another way or watercourse, which in the opinion of the Government Agent is equally convenient, already exists, or has been provided or constructed by such forest officer;

Provided further, that it shall be lawful for the Government Agent to determine the amount of

compensation to be paid, in case he is of opinion that the substituted way 01 watercourse injuriously affects the interests of one or more individuals to whom on that account compensation should be paid.

Acts prohibited in such forests.

6. A person who in a reserved forest-

(a) trespasses, or permits cattle to trespass;

(b) causes any damage by negligence in felling any tree, or cutting or dragging any timber;

(c) willfully strips off the bark or leaves from, or otherwise damages, any tree;

(d) poisons water;

(e) in contravention of any regulations made by the Minister,[1], pastures cattle, hunts, shoots, fishes, or sets traps or snares or guns, or constructs or uses ambushes, or uses any explosives substance,

shall be guilty of an offence, and be liable on conviction to a fine which may extend to fifty rupees, or, when the damage resulting from his offence amounts to more than twenty-five rupees, to double the amount of such damage.

Further prohibited acts.

7. Any person who-

(a) makes any fresh clearing in a reserved forest; or

(b) sets fire to a reserved forest, or in contravention of any regulations made by the Minister[1] kindles any fire, or leaves any fire burning in such manner as to endanger the reserved forest or any part thereof;

or who, in a reserved forest-

(c) kindles, keeps or carries any fire except at such seasons and in such manner as a forest officer, specially empowered in this behalf, may from time to time notify;

(d) fells, girdles, lops, taps, or burns any tree;

(e) quarries stone, burns lime or charcoal, or collects, subjects to any manufacturing process, or removes any forest produces;

(f) clears or breaks up any land for cultivation or any other purpose ;

(g) erects any building whether permanent or temporary, or occupies any building so erected ; road

[2, 30 of

1945]

[2, 30 of 1945] (h) constructs or uses any road constructed by him; or

[2, 30 of 1945] (i) damages, alters, or removes any wall, ditch, embankment, fence, hedge, railing or other boundary mark ;

shall be guilty of an offence and be liable on conviction, to imprisonment for a term which may extend to six months or to fine which may extend to five hundred rupees, or to both in addition to such compensation for damage done to the forest as the convicting court may direct to be paid. Such compensation when awarded shall be treated in all respects as a fine, shall be recoverable as such, and shall not exceed one amount of fine which such court has power to impose.

Acts excepted from prohibition contained in sections 6 and 7.

8. (1) Nothing in section 6 or section 7 shall be deemed to prohibit any act done in accordance with any regulation made by the Minister[1] or with the permission in writing of a forest officer empowered to grant such permission.

(2) The Minister[1] may from time to time make and when made may revoke, vary, or amend regulations with regard to reserved forests or with regard to any particular reserved forest for any of the purposes mentioned in section 20 (1).

[3, 30 of 1945] (3) The forest officer granting any permission required by the preceding provisions of this section or by any regulation made thereunder, may charge and recover a fee in respect of such permission according to such rates as may from time to time be prescribed by the Conservator of Forests with the sanction of the Minister.

Power of Minister to suspend rights of pasture, &c in certain cases.

9. Whenever fire is caused willfully or by gross negligence in a reserved forest by any person having rights in such forest, or fee-having permission to practice chena cultivation therein, or by any person in his employment, the Minister may (notwithstanding that a penalty has been inflicted under section 7 in respect of such fire) direct that in such forest or any specified portion thereof the exercise of all or any of the rights of pasture or to forest produce shall be extinguished or suspended for such period as he thinks fit, and may withdraw any permission to practice chena

cultivation in such forest or portion.

Forests reserved under former law.

10. Any forest which has been declared a reserved forest under any law in force previous to the commencement of this Ordinance shall be deemed to have been reserved hereunder; and all questions decided, orders issued, and records prepared in connexion with the reservation of such forest shall be deemed to have been decided, issued, and prepared hereunder, and all provisions of this Ordinance relating to reserved forests shall apply to such forest.

FORESTS LEASED BY THE GOVERNMENT

Application of Ordinance to leased forests.

11. It shall be lawful for the Minister,[1] by Order[1] published in the Gazette, at any time or from time to time to declare any of the provisions of this Ordinance, and of any regulations or rules made hereunder, to be applicable to forests leased to the Crown, and to bring such forests within the operation of such provisions, regulations, or rules, and any such Order[1] to revoke, alter, or amend.

CHAPTER III

OF VILLAGE FORESTS

Constitution of village forests,

12. The Minister[1] may, by Order[1] published in the Gazette, constitute any portion of forest a village forest for the benefit of any village community or group of village communities, and may in like manner vary or cancel any such Order.[1] Every such Order[1] shall specify the limits of such village forest.

Trees in Schedule I in a village forest the property of the Crown.

13. All trees enumerated in Schedule I in a village forest shall be deemed to be the property of the Crown.

Acts prohibited in village forest.

14

(1) No person shall in a village forest-

(a) poison water, or injure by fire or otherwise any tree enumerated in Schedule I, or

(b) in contravention of any regulation made by the Minister[1] under subsection (2), pasture cattle, or cut, mark, lop, girdle, saw, convert, or remove any tree enumerated in Schedule I.

(2) The Minister[1] may by regulation prescribe the officers who shall be authorized to grant permission to any person in a village forest to do any act mentioned in paragraph (b) of subsection (1), and the circumstances in which and the conditions subject to which such permission may be granted by such officers or any such act may be done.

Power of Minister to make regulations for village forests.

15. The Minister[1] may make regulations for the management of village forests, prescribing the conditions under which the community or group of communities for the benefit of which any such forest is constituted may be provided with timber or other forest produce or with pasture, and their duties in respect of the protection and improvement of such forest. The Minister[1] may, by such regulations, declare any of the provisions of Chapter II of this Ordinance to be applicable to village forests.

Saving of private rights.

16. Nothing in this Chapter shall be deemed to affect any existing rights of any person in or over any village forest.

Penalty for breach of sections 14 and 15.

17. Every person who shall act in contravention of the provisions of section 14 or of any regulation made thereunder, and every person who commits a breach of any of the regulations made under section 15, shall be guilty of an offence punishable by a fine not exceeding one hundred rupees or by imprisonment which may extend to six months.

CHAPTER IV

OF THE PROTECTION OF FOREST AND FOREST PRODUCE

Reserved trees.

18.

(1) All trees Of the Several Species specified in Schedule II standing in any forest shall be deemed to be reserved trees.

(2) The Minister[1] may by notification in the Gazette add any species to or delete any species from the said Schedule.

Protection of reserved trees.

19. No person shall, or shall cause any other person to, cut, mark, lop, girdle, tap, or injure, by fire or otherwise, any reserved tree in any forest, except as provided by rules made by the Minister in this behalf, or unless with the permission in writing of a forest officer empowered by the Minister[1] to grant such permission.

Power to make rules generally.

20.

(1) No person shall clear, set fire to, or break up the soil of, or make use of the pasturage or of the forest produce of, any forest not included in a reserved or village forest, except in accordance with rules to be made by the Minister.[1] Such rules may, with respect to such forests or with respect to any particular forest-

(a) regulate or prohibit the cutting of or setting fire to chenas, or the issue of grants or leases by the Crown with respect to land on which trees enumerated in Schedule II are growing;

(b) regulate or prohibit the kindling of fires, and prescribe the

precautions to be taken to prevent the spreading of fires;

(c) regulate or prohibit the cutting, sawing, conversion, removal and transport of trees and timber and the collection, removal of forest produce;

(d) regulate or prohibit the building of houses or huts, the quarrying of stone or coral, or the digging for plumbago or gems, or the burning of lime or charcoal;

(e) regulate or prohibit the cutting of grass and the pasturing of cattle, and regulate the payments (if any) to be made for such cutting or pasturing;

(f) regulate or prohibit hunting, shooting, fishing, poisoning water, and setting traps or snares or guns, constructing or using ambushes, or the use of explosives;

(g) regulate the sale or free grant of timber or other forest produce; and

(h) prescribe, or authorize any forest officer to prescribe, subject to the sanction of the Minister, the fees, royalties, or other payments for such timber or other forest produce, and the manner in which such fees, royalties, or other payments shall be levied whether in transit, or partly in transit, or otherwise.

Nothing in this section shall be deemed to affect any existing rights of any person in or over pasturage.

(2) The Minister[1] may, by notification in the Gazette from time to time, exempt any person or class of persons or any local area the limits of which shall be defined in such notification, from the operation of any such rule, and may from time to time cancel any such exemption.

Penalties.**21**. The breach of any of the provisions of, or rules made under, this Chapter shall constitute an offence punishable by a fine not exceeding one hundred rupees, or by imprisonment which may extend to six months :

Exemptions**22**. No act shall be deemed to be an infringement of any rule made under this Chapter, if done with the permission in writing of the forest officer duly authorized in that behalf.

Protection from conviction in **23**. No person shall be deemed to have committed an offence in respect of clearing or cutting or setting fire to, or breaking up the soil of, any chena in any case in which the

forest cases.

forest in respect of which the prosecution has been instituted has not been declared under the Land Settlement Ordinance or any enactment repealed by Ordinance No. 20 of 1931 to be the property of the Crown if-

(a) the complainant fails to prove that the trees in the said forest are of more than twenty years growth, and

(b) the accused satisfies the court that he claims the said forest by inheritance or upon deed based upon inheritance and that he or his predecessors in title have on at least two occasions cultivated it according to the customary cycle of cultivation after intervals of several years for similar lands in the same locality.

CHAPTER V

OF THE CONTROL OF TIMBER AND FOREST PRODUCE IN TRANSIT

Power of Minister to make regulations.

24.

(1) The Minister[1] may make regulations respecting the transit of all forest produce by land or water. Such regulations may, among other matters-

(a) prescribe the places at and the routes by which alone forest produce may be exported from, or removed within, Ceylon;

(b) prohibit the import, export, collection, or removing, from any specified local area, of timber without a pass from the Landholder from whose land it was brought, or from an officer duly authorized to issue the same or otherwise than in accordance with the conditions of such pass;

(c) prescribe the form of passes, and provide for their issue, production, and return;

(d) fix the fees payable for passes for the forest produce and timber when cut on land the property of the Crown;

(e) in the case of timber formed into a raft or fastened to the shore, prohibit the loosening or the setting adrift of such timber by any person not the owner thereof, or not acting on behalf of such owner or of the Crown;

(f) provide for the stoppage, reporting, examination, and marking of forest produce in transit, in respect of which

there is reason to believe that any money is payable to the Crown, or to which it is desirable, for the purposes of this Ordinance, to affix a mark ;

(g) establish, or authorize any forest officer to establish, subject to the control of the Minister,[1] stations to which such forest produce shall be taken by those in charge of it for examination, or for the realization of such money, or in order that such mark may be affixed to it; and the conditions under which such forest produce shall be brought to, stored at, and removed from such station ;

(h) provide for the management and control of such stations, and for regulating the appointment and duties of persons employed thereat;

(i) authorize the transport of timber the property of the Crown across any land, and regulate the compensation to be paid for any damage done by the transport of such timber;

(j) prohibit the closing up or obstruction of the channel or banks of any river, lagoon, or backwater used for the transit of timber or other forest produce, and the throwing of grass, brushwood, branches, and leaves into any such river, lagoon, or backwater, or any other act which tends to cause the obstruction of such channel;

(k) provide for the prevention and removal of any obstruction in the channel or on the banks of any such river, lagoon, or backwater, and for recovering the cost of such prevention or removal from the person, or by the sale of any timber or other forest produce causing such obstruction ;

(1) prohibit absolutely, or subject to conditions within specified local limits, the establishment of sawmills, saw pits, the converting, cutting, burning, concealing, marking, or super marking of timber, the altering, defacing, or effacing of any marks on the same, and possession or carrying of marking hammers or other implements used for marking timber ;

(m) regulate the use of property marks for timber, and the registration of such marks; declare the circumstances in which the registration of any property marks may be refused

or cancelled ; prescribe the time for which such registration shall hold good ; limit the number of such marks that may be registered by any one person, and provide for the levy of fees for such registration ;

(n) provide for the protection of bridges, locks, or other public works by regulating the floating of timber or forest produce and the storing of timber or forest produce on river banks, and by authorizing the seizure of timber or forest produce floated or stored in contravention of any rule for the time being in force in that behalf, or by which any damage to such works may have been caused, and the detention and disposal of such timber or forest produce until compensation has been made for the damage done ;

(o) provide for the issue of licences, for the use and possession of marking hammers, and for the levy of fees for such licences.

The Minister[1] may direct that any regulation made under this section shall not apply to any specified class of timber or other forest produce or to any specified local area.

(2) In this section the terms ” forest produce” and ” timber” shall, unless the context otherwise requires, include timber cut in any land or property, whether the property of the Crown or any private individual.

Penalties.**25**. The breach of any of the provisions of, or regulations made under, this Chapter shall constitute an offence punishable, except as hereinafter provided, by a fine not exceeding one hundred rupees, or by imprisonment which may extend to six months:

Provided that any such regulation may, within the above limits, prescribe any punishment, or maximum or minimum punishment, for the breach of all or any of the provisions thereof;

Provided, further, that offences under this Chapter shall be punishable by a fine not exceeding two hundred rupees, or by imprisonment which may extend to one year in cases where the offences are committed after sunset and before sunrise, or after the offender shall have made preparations for resistance to lawful authority, or if the offender has been previously convicted of any offence under this Ordinance.

Power of Government Agent to order a definition of boundaries in certain cases.

26. The Government Agent, in case there is reasonable ground for supposing that any timber for the removal of which a permit is desired has been felled on land which is not private property, may require the person claiming to be the owner of the land on which the timber has been felled to mark or renew the

boundaries of the said land in manner provided by the proviso to section 8 of the Definition of Boundaries Ordinance; and the issue of any pass to remove the timber may be deferred until such requisition has been complied with to the satisfaction of the Government Agent, unless the claimant shall give security to the satisfaction of the forest officer in an amount equal to the value of such timber.

Power of forest officer,&c, to examine timber in transit.

27. The forest officer or police officer or any other officer thereto authorized shall have power to stop and examine any timber during transit, and to detain it, if it is in his opinion being removed contrary to the provisions of this Ordinance, and deal with it as provided in Chapter VII.

Power of forest officer, &c, to enter private depot.

28. 28. Such forest officer or other officer shall also have power to enter any private depot or timber yard and to inspect the timber therein lying, and to collect and remove all unstamped or unmarked unsawn logs as provided in Chapter VI.

All persons bound to aid in case of accident at any place where timber is detained or kept by any forest officer.

29. In case of any accident or emergency involving danger to any property at any place where timber is detained or kept by any forest officer for the purposes of this Ordinance, every person employed at such place, whether by the Crown or by any private person, shall render assistance to any forest officer or police officer demanding his aid, in averting such danger and securing such property from damage or loss.

CHAPTER VI

OF THE COLLECTION OF DRIFT, STRANDED, AND OTHER TIMBER

Certain kinds of timber to be deemed property of the Crown until title thereto proved.

30.

(1)

(a) All unclaimed timber found adrift, beached, stranded, or sunk;

(b) all timber bearing marks which have not been registered under regulations made under section 24;

(c) all timber which has been supermarket, or on which the marks have been obliterated, altered, or defaced by fire or otherwise; and

(d) in such areas as the Minister directs, all unmarked or unstamped timber,

shall be deemed to be the property of the Crown unless and until

any person establishes his right thereto as provided in this Chapter. Power of forest officers to collect the same.

Power of forest officers to collect the same.

(2) Such timber may be collected by any forest officer or other person authorized to collect the same and may be brought to such station as a forest officer empowered in this behalf may from time to time notify as station for reception of drift timber.

(3) The Minister[1] may, by notification in the Gazette, exempt any class of timber from the provisions of this section, and withdraw such exemption.

Publication of notice as to, and claims to, timber collected under section 30.

31. Public notice shall from time to time, as occasion may require, be given by a forest officer empowered in this behalf of timber collected under section 30. Such notice shall contain a description of the timber, and shall require any person claiming the same to present to such officer, within a period not less than one month from the date on which such notice is given, a written statement of such claim.

Procedure on claim preferred to such timber.

32.

(1) When any such statement is presented as aforesaid, the forest officer may, after making such inquiry as he thinks fit, either reject the claim after recording his reasons for so doing, or deliver the timber to the claimant.

(2) If such timber is claimed by more than one person, the forest officer may either deliver the same to any of such persons whom he deems entitled thereto, or may refer the claimants to the civil court and retain the timber pending the receipt of an order from such court for its disposal.

On rejection of claim to such timber claimant may institute suit.

33.

(1) Any person whose claim has been rejected under section 32 may, within one month from the date of such rejection, institute a suit to recover possession of the timber claimed by him; but no person shall recover any compensation against the Crown or against any forest officer on account of such rejection, or the detention or removal of any timber, or the delivery thereof to any other person under this section.

(2) No such timber shall be subject to process of any civil court until it has been delivered, or a suit brought under this section has been

decided.

Disposal of unclaimed timber.

34. If no statement is presented in the manner and within the period prescribed by the notice issued under section 31, or, where such statement having been so presented and the claim having been rejected, the claimant omits to institute a suit to recover possession of such timber within the further period mentioned in section 33, the ownership of such timber shall vest in the Crown free from all encumbrances; or, when such timber has been delivered to another person under section 33, in such other person, free from all encumbrances not created by him.

Payments to be made by claimant before timber is delivered to him.

35. No person shall be entitled to recover possession of any timber collected or delivered as aforesaid until he has paid to the forest officer, or other person entitled to receive it, such sum on account thereof as may be due for collecting, moving, storing, and disposing of the same.

Power of Minister to make regulations and prescribe penalties.

36.

(1) The Minister[1] may make regulations respecting the following matters, namely:-

(a) the collection and disposal of all timber mentioned in section 30;

(b) the amount to be paid for salving, collecting, moving, storing, and disposing of such timber; and

(c) the use and registration of branding irons and other instruments to be used for marking such timber.

(2) The breach of any of the provisions of, or regulations made under, this Chapter shall constitute an offence punishable by a fine not exceeding one hundred rupees, or by imprisonment which may extend to six months.

CHAPTER VII

PENALTIES AND PROCEDURE

Seizure of property liable to confiscation.

37. When there is reason to believe that a forest offence has been committed in respect of any timber or forest produce, such timber or produce, together with all tools, boats, carts, cattle, and motor vehicles used in committing any such offence, may be seized by any forest officer or police officer.

[4, 30 of 1945]

Procedure on

38. Every officer seizing any property under section 37 shall place on such property, or the

seizure. receptacle (if any) in which it is contained, a mark indicating that the same has been so seized and shall, as soon as may be, make a report of the circumstances to the Government Agent.

Provided that when the timber or forest produce with respect to which such offence is believed to have been committed is the property of the Crown and the offender is unknown, it shall be sufficient if the officer makes, as soon as may be, a report of the circumstances to his official superior.

As to the proceedings of the Magistrate. **39**. Upon the receipt of any such report the Government Agent shall forthwith forward the same to the Magistrate having jurisdiction to try the offence, and such Magistrate shall take such measures as may be necessary for the trial of the accused and the disposal of the property according to law.

Power of court to confiscate timber, forest produce, &c. **40**. When any person is convicted of a forest offence, all timber or forest produce which is not the property of the Crown in respect of which such offence has been committed, and all tools, boats, carts, cattle, and motor vehicles used in committing such offence, shall be liable, by order of the convicting Magistrate, to confiscation. Such confiscation may be in addition to any other punishment prescribed for such offence.

[4, 30 of 1945.]

Disposal, on conclusion of trial for forest offence, of produce in respect of which it was committed. **41**. When the trial of any forest offence is concluded, any timber or forest produce in respect of which such offence has been committed shall, if it is the property of the Crown or has been confiscated, be taken possession of by a forest officer empowered in this behalf; and in any other case may be disposed of in such manner as the court may order.

Disposal of perishable property. **42**. The Government Agent may, notwithstanding anything herein before contained, direct the sale of any property seized under section 37 and subject to speedy and natural decay, and may deal with the proceeds as he might have dealt with such property if it had not been sold:

Provided that if the claimant shall give security to the satisfaction of the Government Agent equal to the value of such property, the Government Agent shall forthwith release the seizure and allow such property to be removed by the claimant.

Appeal from orders. **43**. Any person claiming to be interested in property seized under section 37 may, within thirty days from the date of any order passed under section 40 or 41, present an appeal therefrom to the Court of Appeal, and such Court shall deal with the case in the same way as if it were an appeal from a Magistrate's Court in its ordinary jurisdiction.

Property when vested in the Crown. **44**. When an order for the confiscation of any property has been passed section 40, and the period limited by section 43 for presenting an appeal from such order has elapsed, and no such appeal has been presented, or when, on such an appeal being presented, the

Supreme Court confirms such order in respect of the whole or a portion of such property, such property or portion, as the case may be, shall vest in the Crown free from all encumbrances.

Powers of Minister to order release of seizure.

45. Nothing hereinbefore contained shall be deemed to prevent any officer empowered in this behalf by the Minister[1] from directing at any time the immediate release of any property seized under section 37, and the withdrawal of any charge made in respect of such property.

Penalty for wrongful seizure.

46.

(1) Any forest officer or police officer who vexatiously and unnecessarily seizes any property, on pretence of seizing property liable to confiscation under this Ordinance, shall be liable on conviction to imprisonment for a term which may extend to six months, or to fine which may extend to one hundred rupees, or to both.

(2) Any fine so imposed, or any portion thereof, shall, if the convicting Magistrate so directs, be given as compensation to the person aggrieved by such seizure.

Penalty for counterfeiting or defacing marks on trees and timber, and for altering boundary marks.

47. Whoever, with intent to cause damage or injury to the public or to any person, or to cause wrongful gain as defined in the Penal Code-

(a) knowingly counterfeits upon any timber or standing tree, or has in his possession any implement for counterfeiting, a mark used by forest officers to indicate that such timber or tree is the property of the Crown or of some person, or that it may lawfully be cut or removed by some person; or

(b) unlawfully affixes to any timber or standing tree a mark used by forest officers; or

(c) alters, defaces or obliterates any such mark placed on any timber or standing tree by or under the authority of a forest officer; or

(d) alters, moves, destroys, or defaces any boundary mark of any forest to which any provisions of this Ordinance apply,

shall be liable on conviction to imprisonment for a term which may extend to two years, or to fine, or to both.

Power of forest officer, &c, to

48.

(1) Any forest officer or police officer may, without orders from a

arrest without warrant.

Magistrate and without a warrant, arrest any person reasonably suspected of having been concerned in any forest offence punishable with imprisonment for one month or upwards, if such person refuses to give his name and residence or gives a name or residence which there is reason to believe to be false, or if there is reason to believe that he will abscond.

(2) Every officer making an arrest under this section shall, without unnecessary delay, take or send the person arrested to the nearest police station, or, if there is no police station in the division, before the divisional Assistant Government Agent of the division, together with a statement showing the offence with which the accused is charged. The officer in charge of the police station or the divisional Assistant Government Agent shall, without unnecessary delay, take or send the person arrested to the nearest Magistrate.

Power of forest officer to prevent commission of offence.

49. Every forest officer and police officer shall prevent, and may interfere for the purpose of preventing, the commission of any forest offence.

Operation of other laws not barred.

50. Nothing in this Ordinance shall be deemed to prevent any person from being prosecuted under any other law for any act or omission which constitutes a forest offence, or from being liable under such other law to any higher punishment or penalty than that provided by this Ordinance or the regulations or rules made hereunder:

Provided that no person shall be punished twice for the same offence.

Power to forest officer to compound offences.

51.

(1) Any forest officer empowered by the Minister[1] in this behalf may accept from any person reasonably suspected of having committed any forest offence other than an offence under section 46 or section 47 a sum of money by way of compensation for the offence which may have been committed ; and where any property has been seized as liable to confiscation, may release the same on payment of the value thereof as estimated by such officer.

(2) On the payment of such sum of money, or such value, or both, as the case may be, to such officer, the accused person, if in custody, shall be discharged, the property seized shall be released, and no further proceedings shall be taken against such person or property.

Presumption that

52. When in any proceedings taken under this Ordinance, or in consequence of

timber or forest produce belongs to Crown.

anything done under this Ordinance, a question arises as to whether any timber or forest produce is the property of the Crown, such timber or produce shall be presumed to be the property of the Crown until the contrary is proved.

Offences to be triable summarily.

53. Any forest offence other than an offence under section 47 shall be triable by a Magistrate's Court:

Provided that in the case of any such offence a Magistrate who is also a District Judge shall have power to inflict the full penalty prescribed for the offence, notwithstanding any limitation of his ordinary jurisdiction contained in the Criminal Procedure Code ;

Provided further, that a Magistrate, in any case in which he thinks such a course expedient, may order that the proceedings shall be non-summary, and in any such case he shall proceed under Chapter XVI of the Criminal Procedure Code, and the District Court shall have jurisdiction to try the offence.

CHAPTER VIII

CATTLE TRESPASS

Power of forest officer, &c to seize trespassing cattle.

54. Cattle trespassing on a forest plantation under the control and management of forest officers may be seized and impounded by any forest officer or police officer.

Power of Minister to levy fines.

55. The Minister may, by notification in the Gazette, direct that there shall be levied for each head of cattle impounded under section 54 of this Ordinance such fines as he thinks fit, but not exceeding the following, that is to say:- Rs. c. 10 0

(a) For each elephant or buffalo

(b) For each calf, ass, pig, sheep, lamb, goat or kid .. 2 50 5 0

(c) For every head of cattle other than the above

Procedure if fine not paid.

56. If the amount of the fine be not paid within seven days from the time of impounding of any such head of cattle, together with the costs of its agistment, it shall be lawful for the forest officer to sell such head of cattle by public auction, and after deducting from the proceeds of such sale the amount of the fine, the costs of the agistment, and of such sale, such forest officer shall pay the surplus (if any) to the owner of the cattle.

Power to shoot cattle on forest plantation.

57. If it shall be shown to the satisfaction of any Government Agent that cattle are in the habit of trespassing on any forest plantation situated wholly or in part within his district and cannot be seized, it shall be lawful for him to authorize, by licence in writing under his hand, some fit person or persons to proceed to such plantation, and if after reasonable exertion such person shall find it impracticable to seize such animals, to shoot or otherwise destroy the same, or cause the same to be shot or otherwise destroyed in his presence, and this notwithstanding that in the endeavour

to seize such animals they may have been driven off such plantation :

Provided that such licence shall not be subject to any stamp duty, and shall not be in force for more than one month from the date thereof.

CHAPTER IX

OF FOREST OFFICERS

Appointment of Conservator of Forests, &c.

58. (1) There may be appointed from time to time[3] a Conservator of Forests and such forest officers as are required for the purposes of this Ordinance.[1]

Power of Minister to invest forest officer with certain powers.

59. (1) The Minister[1] may invest any forest officer by name or as holding an office with the following powers, that is to Say:-

(a) the powers of a commission appointed under the provisions of the Commissions of Inquiry Act to compel the attendance of witnesses and the production of documents ;

(b) power to issue search warrants under the Code of Criminal Procedure Act;

(c) power to hold inquiries into forest offences, and in the course of such inquiries to receive and record evidence;

(d) power to notify seasons and manner in which fire may be kindled, kept, or carried in a reserved forest;

(e) power to grant any permission referred to in sections 8, 13, 19, 24, 30 or 69;

(f) power to give public notice of timber collected under section 30;

(g) power to take possession of property under this Ordinance;

(h) power to direct the release of property or withdrawal of charges ;

(i) power to accept compensation for forest offences,

and the Minister[1] may withdraw any powers so conferred by him.

(2) Any evidence recorded under paragraph (c) of subsection (1) shall be admissible in any subsequent trial before a Magistrate of the alleged offender :

Provided that it has been taken in the presence of the accused person, and recorded in the manner provided by law.

Forest officers deemed public servants.

60. All forest officers shall be deemed to be public servants within the meaning of the Penal Code.

Indemnity for acts done in good faith.

61. No suit or criminal prosecution shall lie against any public servant for anything done in good faith or omitted by him in good faith under this Ordinance.

Forest officers not to trade,

62. Except with the permission in writing of the Minister[1] no forest officer shall, as principal or agent, trade in timber or forest produce, or be or become interested in any lease or mortgage of any forest, or in any contract for working any forest.

Control of forest may be delegated to Conservator.

63. The Minister[1] may, by notification in the Gazette, declare any reserved forest to be solely under the control of the Conservator of Forests, subject to such restrictions as the Minister may from time to time think fit to impose.

CHAPTER X

MISCELLANEOUS

Additional powers to make regulations.

64. The Minister[1] may make regulations consistent with this Ordinance-

(a) to declare by what forest officer or class of forest officers the powers or duties conferred or imposed by or under this Ordinance on a forest officer shall be exercised or performed;

[2, 34 of 1951]

(b) to establish and regulate a Forest Department fund;

[2, 34 of 1951]

(c) to provide for the payment into such fund of the whole or part of sums received in composition of offences under this Ordinance and of awards made under the Informers' Reward Ordinance to informers in cases of such offences, and for the payment out of the fund, subject to such conditions as may be specified in the regulations, of rewards to informers and forest officers, of travelling expenses properly incurred by

witnesses in attending court for the purpose of giving evidence at trials under this Ordinance;

(d) generally to carry out the provisions of this Ordinance.

Regulations when to have force of law.

65. All regulations or rules made or approved by the Minister[1] under this Ordinance shall be published in the Gazette, and shall thereupon have the force of law.

Powers of Minister exercisable from time to time.

66. All powers conferred by this Ordinance on the Minister[1] may be exercised from time to time as occasion requires.

Persons bound to assist forest officer and police officer.

67. Every person who exercises any right in a reserved forest or a village forest, or who is permitted to take any forest produce from or to cut and remove timber, or to pasture cattle, or to carry on chena cultivation in, such forest, and

(i) every person who is employed by any such person in such forest; and

(ii) every person in any village contiguous to such forest who is employed by the Crown, or who receives emoluments from the Crown for services to be performed to the community,

shall be bound to furnish without unnecessary delay to the nearest forest officer, police officer, or headman any information he may possess respecting the occurrence of a fire in or near such forest, or the commission of, or intention to commit, any forest offence; and shall assist any forest officer, police officer or headman demanding his aid-

(a) in extinguishing any fire occurring in such forest;

(b) in preventing any fire which may occur in the vicinity of such forest from spreading to such forest;

(c) in preventing the commission in such forest of any forest offence; and

(d) when there is reason to believe that any such offence has been committed in such forest, in discovering and arresting the offender.

Recovery of money due to the Crown.

68. All money other than fines, payable to the Crown under this Ordinance, or under any regulation or rule made hereunder, or on account of the price of any timber or forest produce, or of expenses incurred in the execution of this Ordinance in respect of timber or forest produce, shall, if not paid when due, become a debt due to the Crown and be recovered under the provisions contained in sections 72, 73, 74, 75 or 76 of this Ordinance.

Lien on forest produce for such money.

69. (1) When any such money is payable for, or in respect of, any forest produce, the amount thereof shall be deemed to be a first charge on such produce; and such produce may be taken possession of by a forest officer empowered by the Minister in this behalf, and may be retained by him until such amount has been paid.

Power to sell such produce.

(2) If such amount is not paid when due, such forest officer may sell such produce by public auction, and the proceeds of the sale shall be applied first in discharging such amount. The surplus (if any), if not claimed within two months from the date of the sale by the person entitled thereto, shall be forfeited to the Crown.

The Crown not liable for loss or damage in respect of certain timber.

70. The Crown shall not be responsible for any loss or damage which may occur in respect of any timber while at a station established under a regulation made under section 24, or while detained elsewhere for the purposes of this Ordinance, or in respect of any timber collected under section 30; and no forest officer shall be responsible for any such loss or damage unless he causes the same negligently, maliciously, or fraudulently.

Property-seized may be sold.

71. It shall be lawful for the Government Agent or forest officer to sell by public auction any forest produce or property seized under the provisions of this Ordinance, and except where express provision for the application of the proceeds of sale has been made in this Ordinance or any other enactment, the proceeds of such sale shall be paid into the kachcheri and form part of the public revenue of Ceylon.

Property of Crown debtors under section 68 may be sold.

72. It shall be lawful for the Government Agent to seize any property whatsoever belonging to the person by whom any debt is due to the Crown, under the provisions of section 68 of this Ordinance, wheresoever the same may be found within the administrative district of such Government Agent, and if the amount due in respect of such debt and the costs and charges of seizure be not sooner paid or tendered, to sell the property so seized by public auction at any time not less than ten or more than thirty days from the time of such seizure.

Overplus to be restored to owner.

73. In the event of a sale of property seized, the Government Agent at whose instance such seizure was made shall, after deducting the amount due by the debtor and also the costs and charges attending the seizure and sale (which said costs and charges such Government Agent is hereby authorized to retain), restore the overplus arising from such sale, if any there be, to the owner of the property sold.

Certificate of sale of immovable

74. If land or other immovable property be sold under the provisions of this Ordinance, a certificate substantially in the form given in Schedule III, signed by the Government Agent, shall vest such property absolutely in the purchaser free from all

property encumbrances. Such certificate shall be liable to the stamp duty for the time being fixed on conveyances of immovable property and to registration fees, such duty and charges being payable by the purchaser.

Certificate of sale in case of purchase by Crown. **75**. If the land so sold be purchased by the Government Agent, who is hereby authorized to bid for and purchase the same on behalf of the Crown, a certificate substantially in the form given in Schedule IV, signed by the Government Agent, shall vest the property absolutely in the Crown free from all encumbrances:

Provided that such certificate shall not be liable to stamp duty or other fees.

Crown may take credit for amount due from defaulter. **76**. Whenever the Crown purchases any land under the provisions of section 75, the Crown shall not be required to pay the whole of the purchase money of such land but shall be entitled to take credit for the amount due from the defaulter under this Ordinance:

Provided that in the event of the land sold realizing a less sum than the amount due, nothing herein contained shall preclude the Crown from instituting any civil action or process against the defaulter for the recovery of the balance due by him after deducting the purchase money realized by the sale of the land.

Regulations and rules to be laid before the Senate and the House of Representatives. **77**. All regulations and rules under this Ordinance made and approved by the Minister,[1] shall be laid before Parliament within one month[1] of the commencement of the session next after the making of such regulations or approval of such rules, and shall cease to have any force or effect if disapproved by the Senate and the House of Representatives[1] within two months of being so laid on the table.

Interpretation. **78**. In this Ordinance, and in all rules made hereunder, unless there is something repugnant in the subject or context-

" cattle" includes elephants, buffaloes, horses, ponies, mules, asses, pigs, sheep, goats, and the young of the same;

" classification mark" means a mark placed on timber to denote its origin, or the agency by which it has been handled, or the value class to which it has been accorded ;

" forest" means all land at the disposal of the Crown;

"forest offences" means an offences punishable under this Ordinance or any regulation or rule made hereunder;

" forest officer" means all persons appointed by name or as holding an office[3] to be Conservators, Deputy Conservators, Assistant Conservators, foresters, forest rangers, forest guards, forest watchers or to discharge any function of a forest officer under this Ordinance or any regulation or rule made

thereunder;

” forest plantation ” means any plantation made in any forest;

” forest produce ” includes the following things when found in or brought from a forest, that is to say :-

(a) trees and leaves, flowers and fruits, seeds, roots, juice, timber, charcoal, caoutchouc, catechu, wood oil, resin, natural varnish, bark, lac, gum, and myrobalans,

(b) plants not being trees, including grass, creepers, reeds, and moss, and all parts or produce of such plants,

(c) tusks, horns, shed horns, and edible birds’ nests, and

(d) peat, surface soil, rocks and minerals, including limestone, laterite, bitumen, bituminous shale, asphalt, minerals, oils and all products of mines or quarries;

” Government Agent ” means Government Agent of the administrative district;

” headmen ” means all persons holding appointments as territorial headmen,[8] excepting headmen appointed for irrigation purposes or for the purposes of the Village Communities Ordinance ;

” imprisonment” means either rigorous or simple imprisonment as the court adjudging the same may impose;

“land at the disposal of the Crown” includes-

(a) all forest, waste, chena, uncultivated, or unoccupied land, unless proof is adduced to the satisfaction of the court that some person-

(i) has acquired, by some lawful means, a valid title thereto, or

(ii) has acquired a right thereto as against the Crown by the issue to him of any certificate of no claim by the Crown under the Crown Lands Encroachments Ordinance or the Definition of Boundaries Ordinance, or

(iii) is entitled to possess the same under a written grant or lease made by or on behalf of the British, Dutch, or Ceylon Governments, and duly registered in accordance with law;

(b) all lands resumed by the Crown under the provisions of the Land Resumption Ordinance, and all lands which have been declared to be the property of the Crown by any order passed under “The Waste Lands Ordinances, 1897 to 1903 “,*[*Repealed by Ordinance No. 20 of 1931]. the Land Settlement Ordinance, or to which the Crown is otherwise lawfully entitled;

” police officer” includes police headman, police vidanes, and constables;

” property mark ” means a mark placed on timber to denote that after all purchase money or royalties due to the Crown shall have been paid the owner of the mark has or will have a right of property in such timber;

” reserved forest” means and includes-

(a) a forest and every part of a forest declared to be a reserved forest under the provisions of section 3 of this Ordinance, or the corresponding provisions in any enactment repealed by Ordinance No. 16 of 1907, or in any enactment to be hereafter enacted for the purpose of defining reserved forest,

(b) plantations, forest depots, and chenas planted with forest trees;

” river ” includes streams, canals, creeks, reservoirs, tanks, lakes, ponds, and other channels natural or artificial;

” timber” includes trees when they have fallen or have been felled, and all wood, whether cut up or fashioned or hollowed out for any purpose or not;

” tree ” includes bamboos, stumps, and brushwood, palms, canes, and trees in all stages of their growth.